

Osgoode Hall Law School of York University

CRIMINAL LAW – SECTION B (LW/LAW 1040B)
FINAL EXAM

Monday, December 2, 2024

READING PERIOD: 30 MINUTES
WRITING TIME: 3 HOURS

TOTAL TIME FOR EXAM: 3 HOURS + 30 MINUTES

INSTRUCTIONS:

1. The examination consists of 4 pages, including this cover page.
2. This is an open book examination. You may consult any written materials without restriction. You cannot access the internet during this examination.
3. Your exam answers must include ONLY your own original work, and quotations and references should be properly attributed. (Short-form, in-text citations are sufficient.)
4. Please answer ALL exam questions, including all sub-questions. Please note that the sub-questions are not all equally weighted. As such, you may find that your responses to some sub-questions are lengthier than your responses to others.
5. Suggested time allocations have been indicated for each question. The total suggested time adds up to 3 hours, which is the total allocated writing time. (Your 30-minute reading period is in addition to the suggested time allocations.)
6. Your exam should be identified ONLY by your exam number, NOT your name.
7. If you elect to handwrite, be sure to properly fill out the front of every exam booklet you use.

Question A (Fact Pattern)

Total Available Marks: 60

Recommended Time: 108 minutes [1 hour + 48 minutes]

Flower and River were adult siblings who lived together on an off-the-grid farm in Ontario. The farm was built by their parents, who believed in various conspiracy theories. Flower and River had an isolated childhood. They were homeschooled with no access to phones, computers, or television. They were taught by their parents that government officials are corrupt and track citizens through modern technology. After their parents died, Flower and River stayed on the farm. The only time they engaged with other people was during their monthly trips into town, when they sold vegetables at a local farmers' market, then used the cash to buy any necessities they could not produce themselves, including gas for their truck. They had inherited the truck from their parents, who had taught Flower and River to drive but had never discussed taking them to get drivers' licenses.

River had undiagnosed schizophrenia. Having gone untreated, it had developed into a serious condition, and River started experiencing auditory hallucinations. He concluded government officials were sending radio signals directly into his brain. He became fearful that government officials might apprehend him and take him to a secret facility. He did not tell Flower about his fears because he thought doing so might endanger her as well. He found an old pistol in the barn and began secretly carrying it under his shirt for protection.

One Saturday, Flower and River were at the farmers' market. A government inspector approached their table and said, "Good morning, I'm here with the Ministry of Agriculture to ask a few questions about the wonderful products on sale here today." River immediately whispered, "Flower, we have to get out of here!" He and Flower started to walk away, but the inspector followed them saying, "Excuse me? Are you vendors here?" Hoping to block the inspector's path, River suddenly overturned a nearby table, causing dozens of glass jars to smash on the floor. He then grabbed Flower by the hand, and the two of them dashed to their truck and drove away, with Flower driving.

Minutes later, Dilbert arrived at the market with his three-year-old child, Luna. While Dilbert was distracted by cheese samples, Luna wandered off alone. She tried to pick up a piece of glass she saw on the floor, cutting her hand badly. Luna required medical attention but ultimately made a full recovery.

Meanwhile, Flower and River had reached a rural highway. They soon spotted two police officers driving behind them in a marked police cruiser. River urged Flower to speed up, but Flower replied, "I don't think we can outrun the police in this old truck, River!" River then pulled the pistol out from under his shirt, pointed it at Flower, and said, "Now you listen to me, I would rather us both die than get captured! Drive!" Flower slammed her foot on the gas pedal and sped away. Seeing the truck accelerate, the police activated their siren

and gave chase. The chase did not last long, however, because moments later, the truck ran out of gas and rolled to a stop. River and Flower were arrested.

You work for the Crown Attorney's office. The police have brought multiple charges against River and Flower, and your supervisor is deciding how to proceed. You are asked to assist by assessing the likelihood the Crown could secure convictions for each of the following charges, assuming it could prove the facts set out above. You should consider any defences that may apply. You are NOT asked to consider whether it is in the public interest to pursue these charges.

Please assess the likelihood the Crown could secure convictions for the following charges, assuming the Crown could prove all the facts set out above:

1. **Against River: mischief, contrary to s. 430(1) of the *Criminal Code*.** [NOTE: s. 430(1) must be read in conjunction with the definitions set out in ss. 428 & 429 of the *Criminal Code*.]
2. **Against River: unlawfully causing bodily harm, contrary to s. 269 of the *Criminal Code*.** [NOTE: "bodily harm" is defined in s. 2 of the *Criminal Code*.]
3. **Against Flower: flight from peace officer, contrary to s. 320.17 of the *Criminal Code*.** [NOTE: "operate" is defined in s. 320.11 of the *Criminal Code*.]
4. **Against Flower: driving without a license, contrary to s. 32(1) of *Highway Traffic Act*, R.S.O. 1990, c. H.8.**

The relevant portions of the *Highway Traffic Act* read as follows:

Driver's licence

32 (1) No person shall drive a motor vehicle on a highway unless the motor vehicle is within a class of motor vehicles in respect of which the person holds a driver's licence issued to him or her under this Act.

Penalty

32 (16) Every person who contravenes subsection (1), (2), (3), (10), (10.1), (11) or (11.1) is guilty of an offence and on conviction is liable to a fine of not less than \$200 and not more than \$1,000.

Please take care to explain your analysis fully and to develop your answer with reference to the specific content and materials studied in our course.

Question B (Essay Question)

Total Available Marks: 40

Recommended Time: 72 minutes [1 hour + 12 minutes]

Throughout our course, we have seen many instances where the criminal law uses the concept of “reasonableness” or the “reasonable person” to help delineate when people should be held criminally liable.

In your view, is “reasonable” or “reasonableness” an appropriate reference point for helping delineate when people should be held criminally liable?

Please take care to explain your analysis fully and to develop your answer with reference to the specific content and materials studied in our course.

- END OF EXAM –

CONGRATLATIONS! HAVE A WONDERFUL WINTER BREAK!